Dad's Legal Papers: Three Places to Start While Nothing Is Pressing

Three moves, in order, and what to leave for an attorney.

Dad is managing fine. You know he signed a will years ago, and you think there's a power of attorney somewhere, but you've never seen either one. With nothing pressing, it's hard to know where to begin.

Start here. Three things, in this order, at whatever pace suits Dad.

1 Ask Dad what he has signed, and find the papers

These are Dad's papers, so start with him. Ask which ones he remembers signing and where he keeps them, then look together: the will, any trust, the financial power of attorney, his health care papers, any deeds. With his say-so, keep what you find in one place. AARP's legal checklist for family caregivers suggests keeping key documents together and making sure family members know where they are. [1]

WHY THIS COMES FIRST Everything else at this step refers back to the papers themselves, and Dad is right there to tell you where they are.

2 Copy down what each paper says, and stop there

For each one, write the name on its first page, the date it was signed, who it names and where it's kept. Note what you looked for and didn't find. The Consumer Financial Protection Bureau's guide for agents says an agent's authority is limited to what the document and state law allow, which is why the page itself counts for more than anyone's memory of it. Copy the names and the dates. Leave what the document allows to an attorney. [2]

WHY THIS COMES FIRST A dated list of what exists, and who each paper names, is what every later conversation starts from.

3 Start one list of questions, and note who each one goes to

Write questions down as they come up. What Dad wants goes to Dad. What a document means, whether it still fits, and anything about a trust, a deed or a transfer goes to an elder law attorney. How the papers fit into planning to pay for care goes to your Medicaid planner. The Family Caregiver Alliance says a family looking for an attorney can ask the local Area Agency on Aging for a legal consult or hire an attorney who specializes in elder care law. [3]

WHY THIS COMES FIRST You don't have to know yet whether you need an attorney. Sorting the questions is how a family finds out which ones are legal questions.

What to leave for an attorney

- What any of Dad's documents means or allows.
- Whether a document is valid, enough, or still up to date.
- Whether Dad needs a paper he doesn't have, and what would go in it.
- Whether a trust, a transfer or any other legal tool belongs in his plan.
- How any of it is treated where Dad lives. Rules vary by state and change.

One thing to hold still

Taking stock doesn't call for changing anything: not the names on the deed or the accounts, not the beneficiary forms, not the documents themselves. The Consumer Financial Protection Bureau's guide says Medicaid is complicated, and to get legal advice and be very careful about decisions that may affect eligibility. A change someone has in mind goes on the question list first.

What this guide doesn't do

It doesn't interpret any of Dad's papers, say whether they are valid or enough, or decide anything. It isn't legal, financial or tax advice. It puts the first three moves in order.

Ready for the next step?

You've found the papers, copied down who they name and started a list of questions. The planning interview takes it from there: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

The suggestion to keep key documents together follows AARP's legal checklist. The point about an agent's authority and the caution about Medicaid follow the Consumer Financial Protection Bureau's guide for agents. The ways to find an attorney are the Family Caregiver Alliance's. The order is ours.

1. AARP, A Legal Checklist for Family Caregivers
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
3. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?